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Amending Acts

1. Act to Amend Some Nepal Acts Relating to Export, Import and Intellectual Property, 2063This Act came into force from Kartik 5, 2063. 2063.8.8
2. Act to Strengthen the Republic and Amend Some Nepal Laws, 2066This Act came into force from Jestha 15, 2065. 2066.10.7
3. Act to Amend Some Nepal Acts, 2072 2072.11.13
4. Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075 2075.11.19
5. Act to Amend Some Nepal Acts Relating to the Civil Code, 2075 2076.1.2

Act No. 8 of 2059

An Act Made to Provide for Matters Relating to Copyright

Preamble: Whereas it is desirable to make legal provisions relating to copyright timely,

Parliament has enacted this Act in the first year of the reign of His Majesty King Gyanendra Bir Bikram Shah Dev. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Copyright Act, 2059".
- (2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-
 - (a) "Work" means original and intellectual creations presented in the fields of literature, art, science and other areas, and the term also denotes the following works:-
 - (1) Books, pamphlets, articles, research papers,
 - (2) Dramas, dramatic-musical works, pantomimes and works prepared for performance in a similar manner,
 - (3) Musical works, with or without words,
 - (4) Audiovisual works,
 - (5) Architectural designs,
 - (6) Paintings, drawings, sculptures, wood carvings, lithographs and other works relating to architecture,
 - (7) Photographic works,
 - (8) Works of applied art,
 - (9) Illustrations, maps, plans, three-dimensional works relating to geography, topography and scientific

writings,

(10) Computer programs.

(b) "Author" means the person who creates a work mentioned in clause (a).

(c) "Audiovisual Work" means a cinematographic work that can be viewed on a screen, with or without sound.

(d) "Photographic Work" means a work prepared by recording light or other radiation on a surface through chemical, electrical or any other technology, in such a way that an image appears on that surface or can be produced from it.

Provided, however, that a still photograph extracted from an audiovisual work shall not be deemed a photographic work but shall be considered a part of the relevant audiovisual work.

(e) "Sound Recording" means the recording of sound of any performance on any medium by any means for the purpose of hearing, excluding the simultaneous recording of sound and image.

(f) "Performance" means,-

(1) In the case of types of works other than audiovisual works, the act of presenting directly or through any other device or process by recitation, playing, dancing, acting or in any other manner,

(2) In the case of an audiovisual work, the act of sequentially showing the images incorporated in such work and simultaneously making the sounds incorporated therein audible,

(3) In the case of a sound recording, the act of presenting it in public, outside the circle of family, neighbors, friends and acquaintances, or even in the presence of such persons, in such a way that it can be heard publicly.

(g) "Economic Rights" means the rights conferred upon the copyright owner pursuant to section 7.

(j) "Copyright Owner" means the author, if the economic rights are vested in the author of a work; the person or entity in whom the economic rights are originally vested, if the economic rights are originally vested in a person or entity other than the author; and the person or entity to whom the ownership of the economic rights has been transferred, if the ownership of the economic rights has been transferred to any person or entity.

(jh) "Broadcast" means the display or communication of a work for public information, or the transmission of an audio or audiovisual work by means of wireless equipment or satellite.

(ny) "Public Communication" means the act of transmitting a presentation, sound recording or the sound or image or both of a broadcast, by means of wired or wireless equipment, from a location near or far from the place of broadcast, in such a way that it can be heard or viewed.

(t) "Moral Rights" means the rights conferred upon the author or his heir or a person authorized by him, pursuant to section 8.

(th) "Performer" means an actor, singer, musician, dancer and other person who presents literary or artistic works or folk art expressions to the public through the medium of acting, singing, music and dance.

(d) "Publication" means,-

(1) In the case of a dramatic, cinematographic or other performed work, having the work publicly exhibited, sold or rented out, with or without translation or adaptation thereof, and

(2) In the case of any other work, a work that has been brought for public sale, distribution or use, or issued

for sale, distribution or use, with or without translation or adaptation thereof, and the term also denotes the public performance of a work capable of being performed through acting, with or without adaptation or translation thereof.

(dh) "Registrar" means the person appointed pursuant to subsection (1) of section 30.

(n) "Royalty Collection Society" means a society formed pursuant to section 39.

(t) "Prescribed" or "as prescribed" means prescribed or as prescribed by the rules made under this Act.

Chapter-2

Protection and Acquisition of Copyright

3. Protection of Copyright: (1) Every work shall be entitled to copyright protection.

(2) Translations, compilations, ordered arrangements, collections of works or writings, data or databases compiled in a machine-readable form with or without the aid of a device, and derivative works based on proverbs, folk tales, folk songs or any other folk expression under the genre of folk expressions, presented in an original manner from the perspective of presentation, collection or expression, shall be entitled to copyright protection as original works, provided that such protection does not adversely affect the copyright of the original work. 4. Works Not Eligible for Copyright Protection: Notwithstanding anything contained in section 3, no protection under this Act shall be available for ideas, religions, news, methods of operation, concepts, principles, court judgments, administrative decisions, folk songs, folk tales, proverbs and ordinary data, even if they are expressed, described or explained or incorporated in a work. 5. Registration Not Compulsory: (1) Registration of any work, sound recording, performance or broadcast shall not be compulsory for the acquisition of rights under this Act.

(2) Notwithstanding anything contained in subsection (1), any person wishing to voluntarily register any work, sound recording, performance or broadcast may apply to the Registrar and get it registered, and the procedure relating to registration shall be as prescribed. 6.

Owner of Economic Rights in a Work: (1) The first owner of the economic rights in a work shall be the author. (2) Notwithstanding anything contained in subsection (1), in the following circumstances, the economic rights in the work shall vest in the following person or entity:- (a) In the case of a joint work, the co-authors, Provided, however, that if such joint work is divided into parts and each part is identifiable as the work of a separate author and can be used separately, the economic rights in each part shall vest in the respective author. (b) If a joint work is prepared under the direction or supervision of a person or entity, the person or entity under whose direction or supervision such work was prepared, (c) If a person has commissioned the preparation of a work for remuneration, the person or entity providing such remuneration, (d) In the case of an anonymous work, the publisher of such work until the author of the work is identified, Provided, however, that if the actual author of such work subsequently reveals his/her identity, the economic rights in such work shall vest in that author from the date of such revelation. (e) In the case of an audiovisual work, the producer of such work, unless otherwise stipulated in the contract, Provided, however, that if the work of a co-author of the audiovisual work or a pre-existing work is incorporated or integrated into the production of the audiovisual work, their economic rights shall be according to their contribution. 7. Economic Rights: Subject to Chapter 4, only the author or the copyright owner shall have the right to do the following acts in relation to a work:- (a) To reproduce the work, (b) To translate the work, (c) To adapt or modify the work, (d) To make any other transformation of the work, including rearrangement, (e) To sell, distribute or rent out the original and copies

of the work to the public, (f) To transfer or license the rights obtained in an audiovisual work, a work incorporating a sound recording, a computer program, a work in symbolic form based on data or in the form of a graph, (g) To import copies of the work, (h) To publicly display the original work or copies of the work, (i) To perform the work, (j) To broadcast the work, (k) To publicly communicate the work. 8.

Moral Rights: (1) Irrespective of whether the author has economic rights in a work, the author shall have the following moral rights:- (a) To have his/her name mentioned on copies of his/her work or when his/her work is used publicly, (b) If a pseudonym is used without mentioning the true name in his/her work, to have that pseudonym mentioned when the work is used publicly, (c) To prevent acts such as distortion or mutilation of his/her work that would harm his/her honor or reputation, (d) To make necessary modifications or alterations to his/her work. (2) The rights mentioned in subsection (1) shall not be transferable during the lifetime of the author. Provided, however, that if the author wishes to transfer such rights to someone with effect after his/her death, such rights shall pass to the person or entity so wished, and if no such wish is made, they shall pass to the nearest heir. 9. Rights of Performers: (1) A performer shall have the right to do the following acts:- (a) To make his/her performance available to the public by broadcasting or communicating it, (b) To determine the manner or medium of presenting his/her performance and to reproduce it, (c) To make his/her performance available to the public for the first time by selling or transferring the fixation or copies thereof or by changing ownership, (d) To rent out copies of his/her performance, (e) To make the performance produced by a prescribed manner or medium available to the public via wired or wireless equipment, (f) To adapt or modify his/her performance. (2) Once a performer has given consent for the incorporation of his/her performance in an audiovisual medium, he/she shall not exercise the rights mentioned in subsection (1) in respect of that performance again. (3) Notwithstanding anything contained in subsection (2), the performer shall have the right to claim identification as the performer of his/her live audio performance and the performance fixed in a sound recording, and the right to prevent any act of distortion, mutilation or other derogatory treatment of his/her performance that would be prejudicial to his/her reputation or fame. (4) Nothing contained in this section shall be deemed to affect the right of a performer to enter into or agree to a contract containing conditions that provide for greater benefit or advantage from his/her performance. (5) The rights conferred upon a performer pursuant to this section shall subsist for fifty years from the year in which the fixation was made in a sound device, and if not so fixed, for fifty years from the year in which the performance took place. 10.

Rights of Producers of Sound Recordings: (1) The producer of a sound recording shall have the following rights:- (a) To reproduce the sound recording directly or indirectly in any manner or form, (b) To import copies of the sound recording, (c) To make the sound recording available to the public by sale or other transfer of ownership of the original or copies thereof, (d) To rent or lend the sound recording to the public, (e) To make the sound recording audible from a specific place or from a place of his/her choice or by the public, through wired or wireless equipment. (2) The rights under subsection (1) shall subsist for fifty years from the year of publication of such sound recording. 11. Right to Equitable Remuneration for Use of Sound Recording: (1) If a sound recording published for commercial purposes, or a reproduced copy of such sound recording, is used directly for broadcasting or other communication and presented publicly to the public, the producer shall be entitled to receive an equitable remuneration from the user. (2) If there is an agreement between the performer and the producer regarding the receipt of remuneration under subsection (1), it shall be as per the agreement; in the absence of an agreement, the performer shall receive half of the amount received by the producer. (3) The right to receive equitable remuneration under subsection (1) shall subsist for fifty years from the year of publication of such sound recording or from the year of fixation of the sound recording. 12. Rights of Broadcasting Organizations: (1) A broadcasting organization shall have the right to do the following

acts:- (a) To rebroadcast the subject matter it has broadcast, (b) To communicate its broadcast to the public in a manner accessible to the public, (c) To fix its broadcast, (d) To reproduce the fixation of its broadcast. (2) The rights under subsection (1) shall subsist for fifty years from the year in which such broadcast was first made. Amended by the Act to Amend Some Nepal Acts Relating to Export, Import and Intellectual Property, 2063.13.

Protection of Works, Performers, Producers of Sound Recordings or Broadcasting Organizations: (1) The works of the following authors shall be protected under this Act:- (a) Works created by an author residing in the Kingdom of Nepal or a member country of the World Trade Organization and published in the Kingdom of Nepal or in the same country, (b) Audiovisual works produced by a producer residing in the Kingdom of Nepal or a member country of the World Trade Organization, (c) Architectural designs of buildings constructed within the Kingdom of Nepal or a member country of the World Trade Organization, or other forms of artistic works used in buildings or any other structures, (d) Works published in the Kingdom of Nepal by an author residing in a country other than the Kingdom of Nepal or a member country of the World Trade Organization, or audiovisual works produced in the Kingdom of Nepal by a producer of such country. (2) The following performers shall be entitled to performers' rights under this Act:- (a) A performer who is a national of the Kingdom of Nepal or a member country of the World Trade Organization, (b) A performer who has given a performance in the Kingdom of Nepal or a member country of the World Trade Organization, or whose performance is used in a sound recording protected under this Act, or whose performance is included in a broadcast even if not fixed in a sound recording. (3) The following producers of sound recordings shall be entitled to producers' rights relating to sound recordings under this Act:- (a) Sound recordings produced by a person of the Kingdom of Nepal or a member country of the World Trade Organization, (b) Sound recordings published in the Kingdom of Nepal or a member country of the World Trade Organization. (4) The following broadcasting organizations shall be entitled to broadcasting organizations' rights under this Act:- (a) Broadcasts transmitted by a broadcasting organization having its office in the Kingdom of Nepal or a member country of the World Trade Organization, (b) Broadcasts transmitted from a broadcasting center located in the Kingdom of Nepal or a member country of the World Trade Organization. Chapter-3 Duration of Copyright Protection 14.

Duration of Copyright Protection: (1) The economic and moral rights conferred upon an author under this Act shall be protected for the lifetime of the author and, after his/her death, for fifty years from the year of his/her death. (2) In the case of economic and moral rights in a joint work, they shall be protected for fifty years from the year of death of the author who dies last among the authors. (3) The economic and moral rights in a work prepared pursuant to clauses (b) and (c) of subsection (2) of section 6 shall be protected for fifty years from the earlier of the date of first publication of such work or the date it was first made available to the public. (4) The economic and moral rights in a work published anonymously or under a pseudonym shall be protected for fifty years from the earlier of the date of first publication of such work or the date it was first made available to the public. Provided, however, that if the name of the author is published within the aforementioned time, protection as mentioned in subsection (1) or (5) shall be granted depending on the circumstances. (5) The economic and moral rights in a work of applied art and a photographic work shall be protected for twenty-five years from the year in which such work was created. 15. Duration of Protection for Works Published After the Death of the Author: Notwithstanding anything contained in section 14, in the case of a work published after the death of the author (if there is a single author) or after the death of any one of them (if there are two or more authors), such work shall be protected for fifty years from the year of its publication. Chapter-4 Permitted Uses of Copyrighted Material Without Authorization 16. Reproduction for Personal Use: (1) Notwithstanding anything contained in clause (a) of section 7, the authorization of the

author or copyright owner shall not be required for reproducing a part of any published work for personal purposes. (2) Notwithstanding anything contained in subsection (1), reproduction shall not be permitted in a manner that adversely affects the economic rights of the author or copyright owner in the following cases: reproduction of architectural designs created as buildings and other construction-related designs, reproduction of a substantial part of a book, reproduction of musical works in the form of notation, or reproduction of the whole or a significant part of a database through digital transmission. 17.

Quotations: Notwithstanding anything contained in clause (a) of section 7, a part of a published work may be quoted for fair dealing without the authorization of the author or copyright owner, provided that it does not adversely affect the economic rights of the author or copyright owner. When quoting, the source and, if mentioned, the name of the author of such work shall also be indicated. 18. Reproduction for Teaching and Learning:

(1) Notwithstanding anything contained in clause (a) of section 7, the following acts may be done for teaching and learning without the authorization of the author or copyright owner, provided they do not adversely affect the economic rights of the author or copyright owner:- (a) Reproducing a short part of a published work through quotations, writings or audiovisual aids, (b) Reproducing, broadcasting and displaying a part of a work for the purpose of educational activities to be presented in the classroom. (2) In all copies reproduced under subsection (1), the source and the name of the author shall be mentioned. 19.

Reproduction by Libraries and Archives: Notwithstanding anything contained in clause (a) of section 7, a public library or archive that provides works in its possession to persons conducting research or study, without deriving direct or indirect economic benefit, may reproduce one copy of any work in its possession without the authorization of the author or copyright owner, if the work is lost, destroyed, worn out, or cannot be obtained. 20. Reproduction, Broadcast and Other Communication for the Purpose of Informing the Public:

(1) Notwithstanding anything contained in clauses (a), (j) and (k) of section 7, the following acts may be done without the authorization of the author or copyright owner, provided the source and the name of the author are mentioned:- (a) To print in any newspaper or periodical, or to broadcast or otherwise communicate to the public, articles printed in any newspaper or periodical, articles on political or religious topics, or broadcasts of a similar nature, Provided, however, that this shall not be done in a manner that adversely affects the economic rights of the author or copyright owner. (b) To reproduce, broadcast or otherwise communicate for the purpose of informing the public about current events, or to substantiate an event, (c) To reproduce, broadcast or otherwise communicate to the public, for the purpose of providing news, a part of any newspaper or regularly published periodical containing speeches delivered to the public or arguments made in connection with court proceedings. (2) Notwithstanding anything contained in subsection (1), if the author has explicitly stated that such reproduction, broadcast or other communication shall not be made, then such reproduction, broadcast or other communication shall not be permitted.

21. Reproduction of Computer Programs: Notwithstanding anything contained in clauses (a) and (c) of section 7, one copy of a computer program may be reproduced without the authorization of the author or copyright owner for the purpose of achieving the objective for which the program was obtained, if that objective cannot be achieved, or for archival purposes, or if the legally obtained computer program is lost, destroyed or becomes unusable. 22. Import for Personal Use: Notwithstanding anything contained in clause (g) of section 7, one copy of a work may be imported for personal use without the authorization of the author or copyright owner. 23. Public Display: Notwithstanding anything contained in clause (h) of section 7, a person may publicly display a work or a copy of a work without the authorization of the author or copyright owner. Provided, however, that such display shall be made without the aid of a film, slide, television or screen or other types of devices. Chapter-5

Transfer of Copyright

24. Transfer of Copyright: (1) The copyright owner may transfer all or some of the economic rights obtained by him/her to others by written agreement, or may permit the use thereof with or without conditions.

(2) A person entitled to moral rights may, by written agreement, transfer to someone the moral rights obtained by him/her for the protection of such rights after his/her death, subject to the condition that his/her name is not removed from the work.

(3) A person who obtains rights by transfer from the copyright owner under this section shall not perform any act other than the rights so transferred. Chapter-6

Infringement of Protected Rights and Penalties

25.

Acts Constituting Infringement of Protected Rights: (1) If a person does any of the following acts, it shall be deemed an infringement of rights protected under this Act:- (a) Producing and selling, distributing, publicly communicating or renting out copies of a work or sound recording to which he/she has no right, for commercial or any other purpose, with or without economic benefit, without obtaining the authorization of the author or copyright owner, or even if authorization is obtained, violating the conditions mentioned in the agreement or license, (b) Imitating another's work for the purpose of taking advantage of the reputation earned by that work and conducting advertisements or publicity, (c) Creating a work of a different subject or nature by changing the form or linguistic medium of another's work, with the intention of gaining economic benefit, (d) Attempting to gain benefit by directly or indirectly creating or preparing something with the intention of making viewers, listeners or readers believe, through advertisements or any other means, that it is a different work, (e) Importing, producing or renting out devices or means designed to circumvent measures taken to discourage unauthorized reproduction, (f) Producing or importing devices for the purpose of selling devices that help in unauthorized viewing of programs broadcast in encrypted form in a secret code, (g) Importing, selling, distributing or using mechanical devices specifically designed for the purpose of copyright infringement, other than those mentioned in clauses (e) and (f). (2) No person shall, knowing or having sufficient reason to believe that a work or sound recording has been published in contravention of subsection (1), sell, distribute or rent out copies of such work or sound recording. 26. Prohibition on Import of Unauthorized Copies: No copies of any work or sound recording which would be an unauthorized publication if made within Nepal Deleted by the Act to Strengthen the Republic and Amend Some Nepal Laws, 2066. shall be made abroad or obtained by any other means and imported into Nepal Deleted by the Act to Strengthen the Republic and Amend Some Nepal Laws, 2066. for commercial purposes. 27. Penalties for Infringement of Protected Rights: (1) If any person contravenes section 25, such person shall be liable to a fine of ten thousand rupees to one hundred thousand rupees or imprisonment for up to six months or both, depending on the gravity of the offense, and for a second and subsequent offences, a fine of twenty thousand rupees to two hundred thousand rupees or imprisonment for up to one year or both, depending on the gravity of the offense.

The copies so published, reproduced or distributed, and the materials used for reproduction, shall be confiscated.

(2) Compensation for loss caused to the person entitled to copyright by the person infringing the protected rights shall also be awarded. 28. Penalty for Import of Unauthorized Copies: If any person contravenes section 26 and imports unauthorized copies of any work, such copies shall be confiscated and the person

shall be liable to a fine of ten thousand rupees to one hundred thousand rupees, depending on the gravity of the offense, and the person making such import shall also compensate the person entitled to copyright for the loss caused by such import. 29. Other Penalties: If any person contravenes any other provision of this Act or the rules made under this Act, such person shall be liable to a fine of five thousand rupees to fifty thousand rupees, depending on the gravity of the offense. Chapter-7

Miscellaneous

30. Registrar and His/Her Functions, Duties and Powers: (1) To perform the functions of Registrar under this Act, the Government of Nepal shall, by publishing a notice in the Nepal Gazette, appoint an officer of at least the rank of a gazetted second class officer to act as Registrar.

(2) Except as otherwise provided elsewhere in this Act, the functions, duties and powers of the Registrar shall be as follows:-

(a) To supervise and control the Royalty Collection Society,

(b) To hear complaints, as prescribed, if any party is dissatisfied with the royalty determined by the Royalty Collection Society,

(c) To perform or cause to perform other functions as prescribed for the fulfillment of the objectives of this Act. 31. Appeal Against Orders and Decisions of the Registrar: A party dissatisfied with any order or decision given by the Registrar may appeal to the Amended by the Act to Amend Some Nepal Acts, 2072.District Court of the area where the Registrar's Office is located within thirty-five days. 32.

Seizure of Copies of Works, Sound Recordings or Other Materials: (1) If there is a suspicion that any person has published or reproduced, or is about to publish or reproduce, any work or sound recording in contravention of section 25, upon filing a complaint with the police officer investigating the offense under this Act, such police officer shall make necessary arrangements to prevent the sale or distribution of such copies of the work or sound recording and may, if necessary, search and seize such copies of the work or sound recording in accordance with the prevailing law. (2) While searching and seizing under subsection (1), the materials including the machine used for the publication or reproduction of such copies of the work or sound recording may also be seized. 33. Destruction of Copies of Works, Sound Recordings or Other Materials: If copies of works and sound recordings seized under section 32 are ordered to be confiscated upon the final decision of the case by the court, they shall be destroyed in the presence of a representative of the District Administration Office and the Amended by the Act to Amend Some Nepal Acts, 2072.local level, after preparing a panchnama. 34. Powers of Customs Officer Regarding Prevention of Import of Unauthorized Copies: (1) If there is a suspicion that any person is about to import unauthorized copies into Nepal Deleted by the Act to Strengthen the Republic and Amend Some Nepal Laws, 2066. in contravention of section 26, a complaint may be filed with the customs officer along with evidence to prevent the import of such materials. (2) Upon receipt of a complaint under subsection (1), the customs officer shall make necessary inquiries, and if the complaint appears reasonable, he/she may detain the materials being imported for a maximum of twenty working days, divided into periods of ten working days each. (3) Notwithstanding anything contained in subsections (1) and (2), if the customs officer learns or suspects that unauthorized copies are being imported into Nepal Deleted by the Act to Strengthen the Republic and Amend Some Nepal Laws, 2066., he/she may detain such materials for a maximum of twenty working days, divided into periods of ten working days each. (4) Other procedures relating to the prevention of import of unauthorized copies shall be as prescribed. 35.

Proceedings and Disposal of Cases: (1) The jurisdiction to conduct proceedings and dispose of cases punishable under this Act shall vest in the relevant District Court. (2) While conducting proceedings and

disposing of cases under this Act, the procedure under the Summary Procedure Act, 2028 shall be followed.

36. Power to Order Injunction: While conducting proceedings and disposing of complaints under this Act, the District Court may, upon the application of the concerned party, if it deems reasonable to immediately stop any act contrary to this Act, order the relevant person or body to cease such act.

37. Government of Nepal to be Plaintiff: (1) In cases punishable under sections 27 and 28, the Government of Nepal shall be the plaintiff, and such cases Transformed by the Act to Amend, Consolidate, Harmonize and Repeal Some Nepal Laws, 2074 and amended by the Act to Amend Some Nepal Acts Relating to the Civil Code, 2075. shall be deemed to fall under Schedule-1 of the National Criminal Procedure Code, 2074. (2) Investigation and inquiry of cases under this Act shall be conducted by a police officer of at least the rank of Inspector.

38. Limitation: In case of infringement of any right under this Act, a complaint shall be filed within three months from the date of knowledge of such infringement.

39. Provisions Relating to Royalty Collection Society: (1) For the purpose of determining, collecting and distributing royalties relating to works subject to copyright, generally one Royalty Collection Society per genre shall be formed as prescribed. (2) The Royalty Collection Society formed under subsection (1) shall be registered with the Registrar as prescribed. (3) The Royalty Collection Society shall be a self-governing and organized body with perpetual succession. (4) The Royalty Collection Society shall have its own seal for all its acts. (5) The Royalty Collection Society may, like a natural person, acquire, possess, sell or otherwise dispose of movable and immovable property, and may sue and be sued in its own name. (6) The Government of Nepal may prescribe conditions to be complied with by the Royalty Collection Society, and it shall be the duty of the Royalty Collection Society to comply with such conditions.

40. Copyright of the Government of Nepal and Provincial Government: (1) The copyright in a work created by the Government of Nepal shall vest in the Government of Nepal, and the copyright in a work created by a Provincial Government shall vest in the Provincial Government. (2) The Government of Nepal or the Provincial Government may lease, sell or otherwise permit the use of the rights obtained under subsection (1) to any person or entity.

41.